

Court No. - 2

Case :- WRIT - C No. - 23408 of 2010

Petitioner :- Alliance Builders & Contractors Ltd.

Respondent :- U.P.P.C.L Thru. Chairman & Ors.

Petitioner Counsel :- A.K. Singh

Respondent Counsel :- H.P. Dube

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

As prayed by learned counsel for the respondent, put up on 7th May, 2010, as fresh to enable him to obtain instructions.

Order Date :- 3.5.2010

Shiraz

Court No. - 2

Case :- WRIT - C No. - 23408 of 2010

Petitioner :- Alliance Builders & Contractors Ltd.

Respondent :- U.P.P.C.L Thru. Chairman & Ors.

Petitioner Counsel :- A.K. Singh

Respondent Counsel :- H.P. Dube

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

As prayed by the counsel for the respondents put up on 10/5/2010, as fresh.

Order Date :- 7.5.2010

SB

Court No. - 2

Case :- WRIT - C No. - 23408 of 2010

Petitioner :- Alliance Builders & Contractors Ltd.

Respondent :- U.P.P.C.L Thru. Chairman & Ors.

Petitioner Counsel :- A.K. Singh

Respondent Counsel :- H.P. Dube

Hon'ble Ashok Bhushan,J.

Hon'ble Bala Krishna Narayana,J.

Heard, learned counsel for the petitioner and Shri H.P. Dubey for the respondents.

Learned counsel for the respondents does not propose to file counter affidavit. He submits that the writ petition may be finally disposed of.

By this petition, petitioner has prayed for quashing the order/demand notice dated 03/2/2010 issued by the respondent no.4.

Brief facts necessary to be noticed in the writ petition are; the petitioner is a consumer of electricity. Petitioner's premises was checked on 07/8/2006 by a team headed by Executive Engineer, in pursuance of which a provisional notice was given on 22/8/2006. Petitioner filed his reply on 05/9/2006, which is filed as Annexure-3 to the writ petition. Thereafter the Executive Engineer issued an order on 22/9/2006, directing for recovery of the assessed amount along with the compounding fee, failing which F.I.R. was directed to be lodged. Petitioner's case in the writ petition is that he submitted a representation to the Zonal Chief Engineer on 27/9/2006. Thereafter the Chief Engineer constituted a Committee of two Executive Engineers for considering the complaint of the petitioner and thereafter by an order dated 04/5/2007, the Chief Engineer held that the theft could not be established and recommended for withdrawal of the provisional assessment. It appears that after the order dated 04/5/2007, no further action was taken against the petitioner. Objections were raised by the Audit Team against the action taken by the Chief Engineer. Audit objection stated that the order of the Chief Engineer for withdrawing the assessment was not in accordance with the provision of Electricity Supply Code, 2005, copy of which is filed as Annexure-19 to the writ petition. Audit objection was sent to the Corporation and comments of the Management was called for. It appears that the Chief Engineer submitted a reply to the Senior

Account Officer by letter dated 31/7/2009. A letter dated 12/1/2010, was issued by the General Manager (Finance and Accounts) to the Chief Engineer asking for detail reports for considering the reply. It appears that when correspondence between the Chief Engineer and General Manager (Finance and Accounts) was going on in the meantime the Executive Engineer issued notice on 03/2/2010, referring to Section 126 of the Electricity Act, 2003, asking the petitioner to deposit an amount of Rs. 36,68,312/-.

Learned counsel for the petitioner submitted that the impugned notice has been issued only on the basis of audit objection when audit objection was under process and after reply detailed correspondence between the Chief Engineer and the General Manager (Finance and Accounts) was made, but no final decision was taken at the level of Management in this regard. He further submits that the decision taken by the Chief Engineer withdrawing the assessment order was a valid order and there is no decision by any competent authority to set-aside the order of the Chief Engineer, hence the Executive Engineer was not justified to issue the impugned notice dated 03/2/2010.

After hearing the learned counsel for the parties and perusing the record, it is clear that after the audit objection the process for submitting reply to the audit objection was still under progress and the Management has not yet taken any decision as to what action is to be taken in this regard, as to whether the decision of the Chief Engineer was correct or not; and as to whether the petitioner is liable to pay the amount as now determined by the Executive Engineer. The Chief Engineer has unilaterally issued letter dated 03/2/2010.

In view of the aforesaid, we are of the view that till the Management takes a final decision in the matter issuance of the letter dated 03/2/2010 was not justified. In the result we set-aside the order/demand notice dated 03/2/2010, with liberty to the respondent no.2 to take appropriate decision and thereafter proceed in accordance with law.

With the aforesaid observation writ petition stands disposed of.

Order Date :- 12.5.2010
SB